
2:00 PM **LINE 2**

23-CIV-03441

TREVOR ZLATUNICH VS PRIME COMMUNICATIONS, L.P.

TREVOR ZLATUNICH
PRIME COMMUNICATIONS, L.P.

DANIEL BROME
JANINE M. BRAXTON

PLAINTIFF'S MOTION FOR APPROVAL OF PAGA SETTLEMENT AND AWARD OF ATTORNEYS' FEES AND COSTS AND SETTLEMENT ADMINISTRATION COSTS

TENTATIVE RULING:

Plaintiff Christopher Gonzales's motion for approval of PAGA settlement is **DENIED without prejudice**.

The proposed settlement amount is \$439,500.00. The settlement will provide a payment of \$205,631.50 to the California Labor and Workforce Development Agency (i.e., 75% of the \$274,175.33 Net Settlement Amount). The remaining \$68,543.83 will be distributed amongst the aggrieved employees.

In ruling on PAGA settlements, this court has a duty to independently determine whether a settlement is fair, reasonable and adequate. (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76 77, disapproved of on other grounds by *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 66 [“trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA’s purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws.”]; *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 129 [“The court has a fiduciary responsibility as guardians of the rights of the absentee class members when deciding whether to approve a settlement agreement.”]; *In re Microsoft I-V Cases* (2006) 135 Cal.App.4th 706, 723.)

The court has identified several issues that preclude it from granting the motion at this time. The parties must provide the requested information in an amended motion for approval.

Plaintiff shall clarify the number of class members. According to the motion, it is estimated that there are approximately 2,375 aggrieved employees, but the Settlement reports this as 2,435 aggrieved employees. (MPA, at p. 5:8; Settlement, ¶ 3(a)(6).)

The court requests additional information about how the settlement amount was reached. Plaintiff's counsel provides estimated damages for one cause of action: failure to pay wages. However, plaintiff's PAGA action is based on eight other underlying claims, and plaintiff's counsel fails to estimate damages for any of those claims. Additionally, while plaintiff's counsel generally discusses defendant's defenses, he does not explain what specific discounts were made based on which defenses and risks. The court is therefore unable to determine whether the settlement is a reasonable compromise of the claims. This is particularly important where the parties did not use the assistance of a mediator.

Plaintiff shall also discuss the deterrent effect of the settlement. Based on a simple average, the court finds that the individual payment amounts will be less than \$30. While this is not grounds for denial of the settlement, the court would like additional information as to why this settlement is meaningful considering the relatively small payments.

The court further requests additional information for performing a lodestar cross-check of the requested attorneys' fees.

Courts often cross-check fee awards using both methods: i.e., a lodestar approach as compared to a percentage of the common fund approach. [*In re Consumer Privacy Cases* (2009) 175 CA4th 545, 557, 96 CR3d 127, 136; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 504, 205 CR3d 555, 574 — lodestar cross-check provides a mechanism for bringing objective measure of the work performed into the calculation of reasonable attorney fee; *In re Apple Inc. Device Performance Litig.* (9th Cir. 2022) 50 F4th 769, 784 — although cross-check is discretionary, federal courts are encouraged to cross-check fee awards using both methods, particularly when using percentage-of-recovery method]. [¶] In cross-checking, courts are not required to scrutinize hours as closely as in a traditional lodestar calculation, but may use 'counsel declarations summarizing overall time spent, rather than demanding and scrutinizing daily time sheets in which the work performed was broken down by individual task.' [*Laffitte v. Robert Half Int'l Inc.*, *supra*, 1 C5th at 505, 205 CR3d at 574].

(Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter, June 2026 Update) at ¶ 14:145.2a.)

Both firms representing plaintiff must provide summaries of the overall time spent on tasks by each attorney. Additionally, Ms. Fisher shall provide authority supporting the requested rates for the individuals at her firm. The court notes that plaintiff's counsel's requested fee of \$146,500.00 represents a lodestar multiplier of 1.19 based on their reported lodestar of \$122,910.50, but the parties have not provided any justification for a multiplier. The court requests that they do so.

Weil & Brown states that "[o]nce the court has fixed the lodestar, it may increase *or decrease* that amount by applying a positive or negative 'multiplier' to take into account a variety of other factors, including:

- the quality of the representation;
- the novelty and complexity of the issues;
- *the results obtained*; and
- the contingent risk presented. [*PLCM Group, Inc. v. Drexler* (2000) 22 C4th 1084, 1096, 95 CR2d 198, 206-207; *Thayer v. Wells Fargo Bank, N.A.* (2001) 92 CA4th 819,

833, 112 CR2d 284, 293; *Laffitte v. Robert Half Int'l Inc.* (2016) 1 C5th 480, 489, 205 CR3d 555, 561]

(Weil & Brown, *supra*, ¶ 14:145.1, emphasis in original.)

Counsel's requested costs are appropriate but notes that Ms. Fisher's cost estimate chart includes several entries for "Palitz *Pro Hac*." As Mr. Palitz also states that he incurred costs for pro hac fees, counsel shall clarify that there are no duplicate costs between the firms.

Further, Mr. Palitz was admitted pro hac vice on February 28, 2024. His status lapsed when he failed to pay his renewal fee. (See Declaration of Michael Palitz, filed on January 20, 2026, ¶ 2.) He was re-admitted pro hac vice on March 12, 2026. Mr. Palitz is directed to identify the period of time during which he was not admitted to appear before this court pro hac vice. He is further directed to advise the court whether any of the attorney's fees he requests for his firm were incurred during the period in which his pro hac vice application had lapsed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.

2:00 PM LINE 3

23-CIV-05709

MIKHAIL MAALLOULI VS. MATTHEW TODD FREDRICKSEN, ET AL

MIKHAIL MAALLOULI
MATTHEW TODD FREDRICKSEN

NATALIE KORDNAIJ

MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Navid T. Nour to be relieved as counsel of record for plaintiff Mikhail Maalouli is **DENIED without prejudice**. The court's May 19, 2026 Order Shortening Time, required counsel to serve the moving papers and the order on plaintiff by U.S. mail, return receipt requested, and by email and text message. To date, no proof of service has been filed.